

CUI
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
SOLICITATION SPE7L124R0058

- ☒ **ORIGINAL**
☐ **ADDENDUM (attach copy of original J&A for add-ons or revisions)**

1. The Defense Logistics Agency, DLA Land and Maritime, is the contracting activity.
2. The action being approved is the acquisition of supplies/services on other than a full and open competition basis.
3. The supplies/services required to meet the using activity's needs are described as follows:

BRIEF DESCRIPTION	NSN/P/N	QUANTITY	EST. UNIT VALUE	AMSC
STEERING GEAR	2530-124171732	41 EA	\$ [REDACTED]	3/D

WEAPON SYSTEM: EAGLE F-15 AIRCRAFT

ESTIMATED BASE VALUE: \$ [REDACTED]

ESTIMATED TOTAL VALUE (BASE + OPTIONS): \$ [REDACTED]

MAXIMUM CONTRACT VALUE: \$ [REDACTED]

The estimated value is based on the quotes received from the original solicitation. Note – this is a first time buy and was originally solicited under SPE7L324T4924.

4. The statutory authority permitting other than full and open competition is:
☒ 10 U.S.C. 3204(a)(1) - Available from only one or a limited number of sources.
5. If restricted to the only source(s) of supply, include source(s) and CAGE code:
 - a. ZF FRIEDRICHSHAFEN AG (D8124)
 - b. ZF FRIEDRICHSHAFEN AG (D8124) is uniquely qualified because it is the only known source with the data or rights necessary to manufacture this item.

The use of the authority cited below:

- ☒ AMC 3. Acquire, for the second or subsequent time, directly from the manufacturer.

The use of the authority cited is based on:

☒ *AMSC D*. The data needed to acquire this part competitively is not physically available, it cannot be obtained economically, nor is it possible to draft adequate specifications or any other adequate, economical description of the material for a competitive solicitation. AMCS 3, 4, or 5 are valid.

Product Specialist, Danny Peoples, certified the technical certification on 8/5/2024:

Controlled by: DLA Land and Maritime
Controlled by: [FLSCD]
CUI Category: PROCURE/SSI
Distribution/Dissemination Control: FED ONLY
POC: [REDACTED]

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6. Efforts to ensure that offers are solicited from as many sources as practicable are:
[x] The acquisition will be synopsized for 15 days prior to solicitations opening on DIBBS

a. A price analysis will be conducted using historical pricing, the Producer Price Index (PPI), and learning curve analysis. Cost or pricing data in accordance with FAR 15.403-4 will be requested if the offeror's proposal exceeds the \$2M threshold for obtaining cost data, however, it is anticipated that this procurement will not exceed that threshold. Offerors may be requested to submit information other than cost or pricing data for determining price reasonableness. Based on the above techniques, the Contracting Officer anticipates that the cost to the Government will be fair and reasonable.

[illegible]

Sources sought was posted on 8/13/2024 for 5 business days. Two responses were received BHPE LLC (CAGE 9SWS7) and LEAN LOGISTICS CONSULTANTS LLC (9AN44). BHPE LLC (CAGE 9SWS7) was forwarded the Source Approval Request Guide. LEAN LOGISTICS CONSULTANTS LLC (9AN44) asked about the scope of work (manufacturing or procurement) and was informed it is a procurement opportunity not a manufacturing one.

A market survey was conducted on 7/23/2024 and 8/5/2024.

72AW6 S&G TRADING, LIMITED LIABILITY COMP
7BUL6 GLOBAL LOGISTICS STRATEGIES INC.
32900 MIDWAY INDUSTRIAL SUPPLY INC
7Z016 KAMPI COMPONENTS CO INC
4X8W5 MELTON SALES AND SERVICES
1N8T8 JGILS, LLC

72AW6 S&G TRADING, LIMITED LIABILITY COMP
32900 MIDWAY INDUSTRIAL SUPPLY INC

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7Z016 KAMPI COMPONENTS CO INC
1N8T8 JGILS, LLC

Techniques used to conduct survey: Email

Types of information requested: Business size, manufacturer or dealer, commerciality, price breaks, minimum order quantity, and estimated delivery

Summary of information received: MIDWAY INDUSTRIAL SUPPLY INC (32900) stated that this is not an item they would be able to supply. KAMPI COMPONENTS CO INC (7Z016) stated they would not be able to provide a quote for this item. JGILS, LLC (1N8T8) is not interested. S&G TRADING, LIMITED LIABILITY COMP (72AW6) stated they are a small business and a dealer. They carry this item in their inventory, not commercial, . They are willing to submit an offer

Information received regarding the commerciality of the item(s): S&G TRADING, LIMITED LIABILITY COMP (72AW6) stated the item was not commercial. The COTS field, generated by the Product Specialist was left blank. No results were returned on GSA or CID database. Market research did not yield any readily available published catalog price lists, schedules, or other form of commercial pricing that are regularly maintained and updated by a manufacturer or vendor, and that are available to the general public for inspection. There is no evidence of sale prices at which sales were made to a significant number of buyers constituting the general public. Therefore, the Contracting Officer determines this item to be non-commercial, thus FAR 15 procedures will be utilized.

9. Additional facts supporting other than full and open competition are:

[x] Based upon the attached technical certification, technical data is not available and cannot be developed to permit full and open competition. The data presently available reflects the minimum needs of the Government.

10. A listing of sources, if any, indicating an interest in the acquisition is: S&G TRADING, LIMITED LIABILITY COMP (72AW6), LEAN LOGISTICS CONSULTANTS LLC (9AN44)

11. The following actions are being taken to identify additional sources:

[X] Solicitation contains DLA Procurement Note, L04 Offers for Part Numbered Items

[X] Solicitation contains DLA Procurement Note, M06 Evaluation of Offers for Part Numbered Items

12. DFARS PGI (Procedures, Guidance and Information) 206.303 and 206.304 state that justifications citing the authority at FAR 6.302-1 to permit the use of other than full and open competition shall include a copy of a previous justification. There is no previous J&A as this is a first time buy.

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I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.

WHITING.MONICA.L.1378381815  Digitally signed by WHITING.MONICA.L.1378381815
Date: 2024.08.27 13:11:04 -04'00'

Contracting Officer

Date

APPROVAL/CERTIFICATION

I have reviewed and approve this justification:

WIEBUSCH.JAMIE.1251897324  Digitally signed by WIEBUSCH.JAMIE.1251897324
Date: 2024.10.21 15:22:14 -04'00'

Competition Advocate Signature

Date

APPROVAL REQUIREMENTS

☐ Up to \$750,000

Contracting Officer

☒ \$750,000 to \$15,000,000

Competition Advocate

Attachment(s):

1. Technical Data Supporting- Limited Sources